

House File 1039

H-1357

1 Amend House File 1039 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 REBUILD IOWA INFRASTRUCTURE FUND

6 Section 1. REBUILD IOWA INFRASTRUCTURE FUND —
7 APPROPRIATIONS. There is appropriated from the rebuild Iowa
8 infrastructure fund created in section 8.57 to the following
9 state entities for the following fiscal years, the following
10 amounts, or so much thereof as is necessary, to be used for the
11 purposes designated:

12 1. DEPARTMENT OF ADMINISTRATIVE SERVICES

13 For maintenance projects at the state historical building:

14 FY 2025-2026:

15 \$ 5,000,000

16 2. DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

17 a. (1) For deposit in the water quality initiative fund
18 created in [section 466B.45](#) for purposes of supporting the
19 water quality initiative administered by the division of soil
20 conservation and water quality as provided in [section 466B.42](#),
21 including salaries, support, maintenance, and miscellaneous
22 purposes, notwithstanding [section 8.57, subsection 3](#), paragraph
23 "c":

24 FY 2025-2026:

25 \$ 8,200,000

26 (2) (a) The moneys appropriated in this lettered
27 paragraph shall be used to support demonstration projects in
28 subwatersheds as designated by the department that are part
29 of high-priority watersheds identified by the water resources
30 coordinating council.

31 (b) The moneys appropriated in this lettered paragraph
32 shall be used to support demonstration projects in watersheds
33 generally, including regional watersheds, as designated by the
34 division, and high-priority watersheds identified by the water
35 resources coordinating council.

1 (3) In supporting projects in watersheds and subwatersheds
2 as provided in subparagraph (2), all of the following apply:

3 (a) The demonstration projects must utilize water quality
4 practices as described in the latest revision of the document
5 entitled "Iowa Nutrient Reduction Strategy" initially presented
6 in November 2012 by the department of agriculture and land
7 stewardship, the department of natural resources, and Iowa
8 state university of science and technology.

9 (b) The division shall implement demonstration projects
10 as provided in subparagraph division (a) by providing
11 for participation by persons who hold a legal interest in
12 agricultural land used in farming. To every extent practical,
13 the division shall provide for collaborative participation by
14 such persons who hold a legal interest in agricultural land
15 located within the same subwatershed.

16 (c) The division shall implement demonstration projects on
17 a cost-share basis as determined by the division. Except for
18 edge-of-field practices, the state's share of the amount shall
19 not exceed 50 percent of the estimated cost of establishing the
20 practice as determined by the division or 50 percent of the
21 actual cost of establishing the practice, whichever is less.

22 (d) The demonstration projects shall be used to educate
23 other persons about the feasibility and value of establishing
24 similar water quality practices. The division shall promote
25 field day events for purposes of allowing interested persons to
26 establish water quality practices on such persons' agricultural
27 land.

28 (e) The division shall conduct water quality evaluations
29 within supported subwatersheds. Within a reasonable period
30 after accumulating information from such evaluations, the
31 division shall create an aggregated database of water quality
32 practices. Any information identifying a person holding a
33 legal interest in agricultural land or specific agricultural
34 land shall be a confidential record.

35 (4) The moneys appropriated in this lettered paragraph

1 shall be used to support education and outreach in a manner
2 that encourages persons who hold a legal interest in
3 agricultural land used for farming to implement water quality
4 practices, including the establishment of such practices in
5 watersheds generally, and not limited to subwatersheds or
6 high-priority watersheds.

7 (5) The moneys appropriated in this lettered paragraph
8 may be used to contract with persons to coordinate the
9 implementation of efforts provided in this lettered paragraph.

10 (6) The moneys appropriated in this lettered paragraph
11 may be used by the department to support urban soil and water
12 conservation efforts, which may include but are not limited
13 to management practices related to bioretention, landscaping,
14 the use of permeable or pervious pavement, and soil quality
15 restoration. The moneys shall be allocated on a cost-share
16 basis as provided in [chapter 161A](#).

17 (7) Notwithstanding any other provision of law to the
18 contrary, the department may use moneys appropriated in this
19 lettered paragraph to carry out the provisions of this lettered
20 paragraph on a cost-share basis in combination with other
21 moneys available to the department from a state or federal
22 source.

23 (8) Not more than 10 percent of the moneys appropriated in
24 this lettered paragraph may be used for costs of administration
25 and implementation of the water quality initiative administered
26 by the division.

27 b. For deposit in the renewable fuel infrastructure fund
28 created in [section 159A.16](#) for renewable fuel infrastructure
29 programs:

30 FY 2025-2026:

31 \$ 10,000,000

32 The appropriation made in this lettered paragraph is in lieu
33 of the standing appropriation from the general fund of the
34 state in section 159A.17 for the fiscal year beginning July 1,
35 2025, which shall be zero.

1 c. For updating the maximum return to nitrogen modeling
2 system for fertilizer management, notwithstanding section 8.57,
3 subsection 3, paragraph "c":

4 FY 2025-2026:
5 \$ 1,000,000

6 Any information received, collected, or held for purposes
7 of this lettered paragraph is a confidential record exempt
8 from public release if the information identifies a person
9 who holds a legal interest in agricultural land or who has
10 previously held a legal interest in agricultural land, a person
11 who is involved or who was previously involved in managing
12 the agricultural land or producing crops or livestock on
13 the agricultural land, or the identifiable location of the
14 agricultural land.

15 3. DEPARTMENT FOR THE BLIND

16 For building repairs for the building located at 524 Fourth
17 Street, Des Moines, Iowa:

18 FY 2025-2026:
19 \$ 559,000

20 4. DEPARTMENT OF CORRECTIONS

21 For the renovation and construction of a central office for
22 community-based corrections located in district 4:

23 FY 2025-2026:
24 \$ 4,163,847

25 FY 2026-2027:
26 \$ 2,775,898

27 5. ECONOMIC DEVELOPMENT AUTHORITY

28 a. For deposit in the community attraction and tourism
29 fund created in section 15F.204, notwithstanding section 8.57,
30 subsection 3, paragraph "c":

31 FY 2025-2026:
32 \$ 10,000,000

33 b. For deposit in the destination Iowa fund created in
34 section 15.281, notwithstanding section 8.57, subsection 3,
35 paragraph "c":

1 FY 2025-2026:
 2 \$ 10,000,000
 3 c. For equal distribution to regional sports authority
 4 districts certified by the authority pursuant to section
 5 15E.321, notwithstanding section 8.57, subsection 3, paragraph
 6 "c":
 7 FY 2025-2026:
 8 \$ 750,000
 9 d. For marking historical sites in Iowa that were used to
 10 provide shelter or aid as part of the underground railroad,
 11 notwithstanding section 8.57, subsection 3, paragraph "c":
 12 FY 2025-2026:
 13 \$ 40,000
 14 6. IOWA STATE FAIR AUTHORITY
 15 For the construction of an agriculture education facility:
 16 FY 2025-2026:
 17 \$ 2,500,000
 18 FY 2026-2027:
 19 \$ 2,500,000
 20 7. DEPARTMENT OF NATURAL RESOURCES
 21 a. For implementation of lake projects that have
 22 established watershed improvement initiatives and community
 23 support in accordance with the department's annual lake
 24 restoration plan and report, notwithstanding section 8.57,
 25 subsection 3, paragraph "c":
 26 FY 2025-2026:
 27 \$ 9,600,000
 28 b. For state park infrastructure improvements:
 29 FY 2025-2026:
 30 \$ 5,000,000
 31 c. For water trails and low head dam safety grants,
 32 including grants for projects relating to eligible water
 33 bodies, as defined in section 456A.33C, notwithstanding section
 34 8.57, subsection 3, paragraph "c":
 35 FY 2025-2026:

1 \$ 1,500,000
 2 8. DEPARTMENT OF PUBLIC DEFENSE
 3 a. For major maintenance projects at national guard
 4 armories and facilities:
 5 FY 2025-2026:
 6 \$ 2,100,000
 7 b. For improvement projects for Iowa national guard
 8 installations and readiness centers to support operations and
 9 training requirements:
 10 FY 2025-2026:
 11 \$ 2,100,000
 12 c. For construction improvement projects at the Camp Dodge
 13 facility:
 14 FY 2025-2026:
 15 \$ 550,000
 16 d. The department of public defense shall report to the
 17 general assembly by December 15, 2025, regarding the projects
 18 the department has funded or intends to fund from moneys
 19 appropriated to the department pursuant to this subsection.
 20 9. DEPARTMENT OF PUBLIC SAFETY
 21 For payments and other costs due under a financing agreement
 22 entered into by the treasurer of state for building the
 23 statewide interoperable communications system pursuant to
 24 section 29C.23, subsection 2, notwithstanding section 8.57,
 25 subsection 3, paragraph "c":
 26 FY 2025-2026:
 27 \$ 6,486,177
 28 10. BOARD OF REGENTS
 29 a. For allocation by the state board of regents to the
 30 state university of Iowa, Iowa state university of science
 31 and technology, and the university of northern Iowa to
 32 reimburse the institutions for deficiencies in the operating
 33 funds resulting from the pledging of tuition, student fees
 34 and charges, and institutional income to finance the cost of
 35 providing academic and administrative buildings and facilities

1 and utility services at the institutions:
2 FY 2025-2026:
3 \$ 25,600,000
4 b. For the renovation and construction of the public policy
5 center at the commons at the university of northern Iowa:
6 FY 2025-2026:
7 \$ 1,000,000
8 11. DEPARTMENT OF TRANSPORTATION
9 a. For acquiring, constructing, and improving recreational
10 trails within the state:
11 FY 2025-2026:
12 \$ 2,500,000
13 b. For deposit in the public transit infrastructure grant
14 fund created in section 324A.6A, for projects that meet
15 the definition of vertical infrastructure in section 8.57,
16 subsection 3, paragraph "c":
17 FY 2025-2026:
18 \$ 1,200,000
19 c. For deposit in the railroad revolving loan and grant
20 fund created in section 327H.20A, notwithstanding section 8.57,
21 subsection 3, paragraph "c":
22 FY 2025-2026:
23 \$ 2,000,000
24 d. For vertical infrastructure improvements at the
25 commercial service airports within the state:
26 FY 2025-2026:
27 \$ 1,900,000
28 e. For vertical infrastructure improvements at general
29 aviation airports within the state:
30 FY 2025-2026:
31 \$ 1,000,000
32 12. TREASURER OF STATE
33 For distribution in accordance with chapter 174 to qualified
34 fairs that belong to the association of Iowa fairs for county
35 fair vertical infrastructure improvements:

1 vision Iowa fund ~~are not subject to section 8.33~~ that remain
2 unencumbered or unobligated at the close of a fiscal year shall
3 be deposited in the rebuild Iowa infrastructure fund created
4 in section 8.57. Notwithstanding section 12C.7, subsection 2,
5 interest or earnings on moneys in the fund shall be credited
6 to the fund.

7 Sec. 6. Section 15.261, subsection 3, Code 2025, is amended
8 to read as follows:

9 3. Notwithstanding section 12C.7, subsection 2, interest or
10 earnings on moneys deposited in the vacant buildings demolition
11 fund shall be credited to the vacant buildings demolition
12 fund. Notwithstanding section 8.33, moneys ~~credited to~~ in the
13 vacant buildings demolition fund that remain unencumbered or
14 unobligated at the close of a fiscal year shall not revert at
15 the close of a fiscal year be deposited in the rebuild Iowa
16 infrastructure fund created in section 8.57.

17 Sec. 7. Section 15.262, subsection 3, Code 2025, is amended
18 to read as follows:

19 3. Notwithstanding section 12C.7, subsection 2, interest
20 or earnings on moneys deposited in the vacant buildings
21 rehabilitation fund shall be credited to the vacant buildings
22 rehabilitation fund. Notwithstanding section 8.33, moneys
23 ~~credited to~~ in the vacant buildings rehabilitation fund
24 that remain unencumbered or unobligated at the close of a
25 fiscal year shall not revert at the close of a fiscal year be
26 deposited in the rebuild Iowa infrastructure fund created in
27 section 8.57.

28 Sec. 8. EFFECTIVE DATE. The following, being deemed of
29 immediate importance, take effect upon enactment:

30 1. The section of this division of this Act amending section
31 12.72, subsection 3.

32 2. The section of this division of this Act amending section
33 15.261, subsection 3.

34 3. The section of this division of this Act amending section
35 15.262, subsection 3.

1 DIVISION II

2 TECHNOLOGY REINVESTMENT FUND

3 Sec. 9. TECHNOLOGY REINVESTMENT FUND. There is

4 appropriated from the technology reinvestment fund created in

5 section 8.57C to the following state entities for the fiscal

6 year beginning July 1, 2025, and ending June 30, 2026, the

7 following amounts, or so much thereof as is necessary, to be

8 used for the purposes designated:

9 1. DEPARTMENT OF CORRECTIONS

10 For technology projects and upgrades:

11 \$ 3,013,466

12 2. ECONOMIC DEVELOPMENT AUTHORITY

13 For the purchase of an enterprise management system:

14 \$ 5,375,000

15 3. DEPARTMENT OF EDUCATION

16 a. For the continued development and implementation of an

17 educational data warehouse that will be utilized by teachers,

18 parents, school district administrators, area education agency

19 staff, department of education staff, and policymakers:

20 \$ 600,000

21 Of the moneys appropriated in this lettered paragraph, the

22 department may use a portion for an e-transcript data system

23 capable of tracking students throughout the students' education

24 via interconnectivity with multiple schools.

25 b. For maintenance and lease costs associated with

26 connections for part III of the Iowa communications network:

27 \$ 2,727,000

28 4. DEPARTMENT OF HEALTH AND HUMAN SERVICES

29 For technology costs associated with the state poison

30 control center:

31 \$ 34,000

32 5. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

33 For the continued implementation of a statewide mass

34 notification and emergency messaging system:

35 \$ 400,000

1 6. DEPARTMENT OF MANAGEMENT

2 a. For the continued development and implementation of

3 a searchable database that can be placed on the internet for

4 budget and financial information:

5 \$ 45,000

6 b. For the continued development and implementation of the

7 comprehensive electronic grant management system:

8 \$ 70,000

9 c. For the upgrade of the local government budget and

10 property tax system:

11 \$ 120,000

12 d. For the annual licensing of a searchable database that is

13 placed on the internet for budget and financial information:

14 \$ 358,429

15 e. For the security office of the chief information

16 officer, including for statewide endpoint detection and

17 response, cybersecurity incident investigation response, and

18 miscellaneous purposes:

19 \$ 2,947,658

20 f. For the cost of equipment and computer software for the

21 continued development and implementation of Iowa's criminal

22 justice information system:

23 \$ 1,400,000

24 g. For the costs associated with the justice enterprise data

25 warehouse:

26 \$ 282,664

27 h. For the costs associated with the justice enterprise data

28 warehouse transition:

29 \$ 290,000

30 7. DEPARTMENT OF PUBLIC DEFENSE

31 For the purchase of software relating to state active-duty

32 tracking and for data conversion costs associated with

33 migrating technology platforms:

34 \$ 220,000

35 8. TREASURER OF STATE

1 a. For the purchase of software relating to investment
2 tracking:
3 \$ 192,000

4 b. For the purchase of software relating to banking
5 reconciliations:
6 \$ 228,000

7 Sec. 10. REVERSION. For purposes of section 8.33, unless
8 specifically provided otherwise, unencumbered or unobligated
9 moneys from an appropriation made in this division of this Act
10 shall not revert but shall remain available for expenditure for
11 the purposes designated until the close of the fiscal year that
12 ends two years after the end of the fiscal year for which the
13 appropriation is made. However, if the project or projects for
14 which such appropriation was made are completed in an earlier
15 fiscal year, unencumbered or unobligated moneys shall revert at
16 the close of that same fiscal year.

17 Sec. 11. Section 8.57C, subsection 3, Code 2025, is amended
18 to read as follows:

19 3. a. There is appropriated from the general fund of the
20 state to the technology reinvestment fund for the fiscal year
21 beginning July 1, ~~2025~~ 2026, and for each ~~subsequent~~ fiscal
22 year thereafter, the sum of seventeen million five hundred
23 thousand dollars.

24 b. There is appropriated from the rebuild Iowa
25 infrastructure fund for the fiscal year beginning July 1,
26 ~~2023~~ 2025, and ending June 30, ~~2024~~ 2026, the sum of ~~eighteen~~
27 ~~million three hundred ninety thousand two hundred ninety~~
28 eighteen million two hundred sixty-nine thousand two hundred
29 seventeen dollars to the technology reinvestment fund,
30 notwithstanding section 8.57, subsection 3, paragraph "c".

31 ~~c. There is appropriated from the rebuild Iowa~~
32 ~~infrastructure fund for the fiscal year beginning July 1, 2024,~~
33 ~~and ending June 30, 2025, the sum of twenty-one million one~~
34 ~~hundred thirty-one thousand eight hundred seventy-three dollars~~
35 ~~to the technology reinvestment fund, notwithstanding section~~

1 ~~8.57, subsection 3, paragraph "c".~~

2 DIVISION III

3 CHANGES TO PRIOR APPROPRIATIONS

4 Sec. 12. 2021 Iowa Acts, chapter 167, section 2, as amended
5 by 2023 Iowa Acts, chapter 118, section 6, and 2024 Iowa Acts,
6 chapter 1155, section 7, is amended to read as follows:

7 SEC. 2. REVERSION.

8 1. Except as provided in subsection 2, for purposes
9 of [section 8.33](#), unless specifically provided otherwise,
10 unencumbered or unobligated moneys from an appropriation made
11 in this division of this Act shall not revert but shall remain
12 available for expenditure for the purposes designated until the
13 close of the fiscal year that ends two years after the end of
14 the fiscal year for which the appropriation is made. However,
15 if the project or projects for which such appropriation was
16 made are completed in an earlier fiscal year, unencumbered
17 or unobligated moneys shall revert at the close of that same
18 fiscal year.

19 2. a. For purposes of [section 8.33](#), unless specifically
20 provided otherwise, unencumbered or unobligated moneys from
21 an appropriation made in section 1, subsection 10, paragraph
22 "d", of this division of this 2021 Iowa Act, as amended by 2022
23 Iowa Acts, chapter 1150, section 11, shall not revert but shall
24 remain available for expenditure for the purposes designated
25 until the project for which the appropriation was made is
26 completed.

27 b. For purposes of [section 8.33](#), unencumbered or
28 unobligated moneys from an appropriation made in section 1,
29 subsection 4, of this division of this 2021 Iowa Act, shall
30 not revert but shall remain available for expenditure for the
31 purposes designated until the close of the fiscal year that
32 ends ~~three~~ four years after the end of the fiscal year for
33 which the appropriation is made, or until the project for which
34 the appropriation was made is completed, whichever is earlier.

35 c. For purposes of [section 8.33](#), unencumbered or

1 unobligated moneys from an appropriation made in section 1,
2 subsection 16, of this division of this 2021 Iowa Act, as
3 amended by this 2024 Iowa Act, shall not revert but shall
4 remain available for expenditure for the purposes designated
5 until the close of the fiscal year that ends ~~three~~ four years
6 after the end of the fiscal year for which the appropriation is
7 made, or until the project for which the appropriation was made
8 is completed, whichever is earlier.

9 Sec. 13. 2022 Iowa Acts, chapter 1150, section 2, as amended
10 by 2024 Iowa Acts, chapter 1155, section 9, is amended to read
11 as follows:

12 SEC. 2. REVERSION.

13 1. For purposes of [section 8.33](#), unless specifically
14 provided in subsection 2 or otherwise, unencumbered or
15 unobligated moneys from an appropriation made in this division
16 of this Act shall not revert but shall remain available for
17 expenditure for the purposes designated until the close of
18 the fiscal year that ends two years after the end of the
19 fiscal year for which the appropriation is made. However,
20 if the project or projects for which such appropriation was
21 made are completed in an earlier fiscal year, unencumbered
22 or unobligated moneys shall revert at the close of that same
23 fiscal year.

24 2. For purposes of [section 8.33](#), unencumbered or
25 unobligated moneys from an appropriation made in section 1,
26 subsection 4, of this division of this 2022 Iowa Act, shall
27 not revert but shall remain available for expenditure for the
28 purposes designated until the close of the fiscal year that
29 ends ~~three~~ four years after the end of the fiscal year for
30 which the appropriation is made, or until the project for which
31 the appropriation was made is completed, whichever is earlier.

32 Sec. 14. 2024 Iowa Acts, chapter 1155, section 1, subsection
33 1, paragraph b, is amended to read as follows:

34 b. For major maintenance projects at the Iowa state capitol
35 and for signage on capitol complex grounds:

1 \$ 2,000,000

2 (1) Of the amount appropriated in this paragraph, the
3 department of administrative services shall allocate and use
4 the moneys necessary to improve and repair the steps on the
5 west side of the exterior of the capitol building and for
6 projects on the east side of the exterior of the capitol
7 building, as directed by the legislative branch, by the close
8 of the fiscal year that begins July 1, ~~2024~~ 2025.

9 (2) Of the amount appropriated in this paragraph, the
10 department of administrative services shall allocate and use
11 not more than \$100,000 to purchase and erect signs on the state
12 capitol complex grounds, as directed by the legislative branch,
13 by the close of the fiscal year that begins July 1, 2025.

14 Sec. 15. EFFECTIVE DATE. This division of this Act, being
15 deemed of immediate importance, takes effect upon enactment.

16 DIVISION IV

17 DISTRICT COURT FURNISHINGS

18 Sec. 16. Section 602.1303, subsection 1, Code 2025, is
19 amended by adding the following new paragraph:

20 NEW PARAGRAPH. *d.* A county shall provide furnishings for
21 the use of judicial officers, referees, and their staff.

22 Sec. 17. Section 602.11101, subsection 1, paragraph e,
23 subparagraph (2), Code 2025, is amended to read as follows:

24 (2) (a) Until July 1, 1986, the county shall remain
25 responsible for the compensation of and operating costs for
26 court employees not presently designated for state financing
27 and for miscellaneous costs of the judicial branch related to
28 furnishings, supplies, and equipment purchased, leased, or
29 maintained for the use of judicial officers, referees, and
30 their staff.

31 (b) Effective July 1, 1986, except as provided in
32 subparagraph division (c) or (d), as applicable, the state
33 shall assume the responsibility for the compensation of and
34 operating costs for court employees presently designated for
35 state financing and for miscellaneous costs of the judicial

1 branch related to furnishings, supplies, and equipment
2 purchased, leased, or maintained for the use of judicial
3 officers, referees, and their staff. However, the county
4 shall at all times remain responsible for the provision of
5 suitable courtrooms, offices, and other physical facilities
6 pursuant to [section 602.1303, subsection 1](#), including paint,
7 wall covering, and fixtures in the facilities. ~~In addition,~~
8 ~~however, effective~~

9 (c) Effective July 1, 2023, except as provided in
10 subparagraph division (d), if a county expends moneys for the
11 renovation or construction of suitable courtrooms, offices, and
12 other physical facilities pursuant to [section 602.1303](#), that
13 requires the purchase of furnishings, supplies, and equipment
14 for the use of judicial officers, referees, and their staff as
15 a result of that renovation or construction, the state shall be
16 responsible for only seventy-five percent of the cost of the
17 purchase.

18 (d) Effective July 1, 2025, the state is not responsible
19 for the cost of furnishings purchased, leased, or maintained
20 for the use of judicial officers, referees, and their staff in
21 physical facilities described in section 602.1303, subsection
22 1.

23 Sec. 18. IMPLEMENTATION OF THIS DIVISION OF THIS
24 ACT. Section 25B.2, subsection 3, shall not apply to this
25 division of this Act.>

BOSSMAN of Woodbury